

		Torre. (ROA 106.) The Proof of Service of that Order was filed on April 1, 2026 POS filed. (ROA 149.) This motion for terminating sanctions was originally on calendar for March 30, 2026, but continued for service on both Plaintiff and Plaintiff's counsel (in an abundance of caution). Defendants served the motion and notice of continuance on Plaintiff and Plaintiff's (now former) counsel on March 30, 2026. (ROA 145, 151.) It is unclear to this court whether Plaintiff's failure to comply with the September 15, 2025 order is willful. The court therefore orders as follows: 1. The court orders counsel for Defendants to give notice of the court's ruling to Plaintiff and Plaintiff's former counsel on or before June 5, 2026, and file proof of service of that notice. 2. The court orders Plaintiff to provide verified responses to Defendants' Special Interrogatories, Set One, Form Interrogatories, Set One, and Requests for Production of Documents, Set One, on or before June 12, 2026. These responses must be personally served or delivered by overnight delivery to be received by June 19. 3. The court orders Plaintiff to pay sanctions in the amount of \$1665.00 to Defendants no later than June 12, 2026. Payment shall be in cash, certified check, cashier's check, or similar method of payment. 4. The motion for terminating sanctions is continued to Monday, June 15, 2026, at 9:00 a.m. If item #1 above has been complied with, and items #2 and #3 above have not been fully complied with, the court will grant the motion for terminating sanctions without further notice. No further briefing will be accepted regarding the motion for terminating sanctions.
107	Elias v. Jensen 2020-01139897	Motion to Compel Answers to Form Interrogatories - GRANTED Motion to Compel Further Responses to Special Interrogatories - GRANTED Motion to Compel Production – GRANTED IN PART AND DENIED IN PART Motion to Deem Facts Admitted – GRANTED

SANCTIONS AWARDED

Defendant Brown & Streza LLP (“Defendant” or “Brown & Streza”) filed the above discovery motions seeking orders compelling full responses by Plaintiff David Elias (“Plaintiff” or “Elias”), who is self-represented. Defendant also seeks sanctions against Plaintiff in connection with each motion. All discovery motions were timely filed and the necessary meet & confer process was complied with. No timely opposition has been filed by Plaintiff.

Form Interrogatories

If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. (Code Civ. Proc. §§ 2030.290(a)-(b).) By operation of law, if a party fails to serve a timely response to interrogatories, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. (Code Civ. Proc. § 2030.290(a); (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 408; Leach v. Superior Court (1980) 111 Cal.App.3d 902, 906.)

“[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. §§ 2030.290(c).) The burden of showing that a party acted with substantial justification or that other circumstances make the imposition of the sanction unjust is on the losing party. (Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 139.)

On September 15, 2025, Defendant served Plaintiff with First Amended Form Interrogatories – General, Set One.

(Declaration of Hanqiu “Ian” Liu (“Liu Decl.”), ¶ 2, Ex. A.) Plaintiff’s responses were due on or before October 20, 2025 – thirty (30) days after service, but Plaintiff has not served any response. (Liu Decl., ¶ 3; Reply Declaration of Stevie B. Baris, ¶ 8.)

As a result of Plaintiff’s failure to serve responses to the First Amended Form Interrogatories, Plaintiff has waived any objection to the interrogatories, including one based on privilege or on the protection for work product. (Code Civ. Proc. §§ 2030.290(a).) The motion to compel responses to Defendant’s First Amended Form Interrogatories is GRANTED. Plaintiff to serve verified, objection-free responses to Brown & Streza’s First Amended Form Interrogatories within 30 days.

With regards to sanctions, Plaintiff has not shown that he has acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Brown & Streza’s request for \$3,060 in monetary sanctions which includes 12 hours on this motion is not reasonable. The Court finds 3.0 hours to draft this motion, 2.0 hours to review any opposition and to draft a reply, and 2.0 hours to attend the hearing at an hourly rate of \$250 per hour to be reasonable, in addition to the \$60 filing fee. (Liu Decl., ¶ 7.)

Based on the foregoing, the Court GRANTS a monetary sanction in the reduced amount of \$1,810 (\$250 x 7 hours + \$60) against Plaintiff, to be paid within 30 days.

Special Interrogatories

On September 15, 2025, Defendant served its First Amended Special Interrogatories, Set One, on Plaintiff by email and U.S. mail. (Liu Decl., ¶ 2, Ex. A.) Plaintiff served responses late on November 8, 2025, and did not serve a purported verification until December 12, 2025. (Liu Decl., ¶¶ 4, 7, Exs. B and D.) As Plaintiff served untimely responses, all objections have been waived.

Defendant Brown & Streza LLP (“Defendant” or “Brown & Streza”) moves for an order compelling Plaintiff to serve further, code-compliant responses, without

objections, to Defendant's First Amended Special Interrogatories (Set One), Nos. 1-73, and awarding monetary sanctions in the amount of \$4,060 against Plaintiff. The Motion is GRANTED, in its entirety, as follows.

Code of Civil Procedure section 2030.300(a) provides that a party propounding discovery may move for an order compelling a further response if an answer to a particular interrogatory is evasive or incomplete, or an exercise of the option to produce documents under Code Civ. Proc. section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general.

If a timely motion to compel has been filed, the burden is on the responding party to justify the adequacy of the response, the propriety of any objections, or the failure to fully answer the interrogatories. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255; Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.) A party opposing discovery has an obligation to supply the basis for an objection asserted in response to discovery. (Williams v. Superior Court (2017) 3 Cal.5th 531, 549 [party objecting to interrogatories has burden of supplying supporting evidence in response to a motion to compel].) Plaintiff has failed to do so.

The court finds that all objections have been waived as the Plaintiff served untimely responses.

Plaintiff failed to provide any response Special Interrogatory, Nos. 2, 6, 10, and 14.

Every response which includes the phrase, "not exclusive," is improper as it is not "as complete and straightforward as the information reasonably available to the responding party permits." (CCP § 2030.220(a).) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (CCP § 2030.220(b).) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable

and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party. (CCP § 2030.220(c).) Responses with the phrase “not exclusive,” also renders the response incomplete and/or evasive.

Responses to special interrogatories which seek the identification of persons and identification of documents are incomplete, including Special Interrogatory, Nos. 3, 4, 7, 8, 10, 11, 15, 16, and 34.

Plaintiff’s responses to the following special interrogatories are not responsive and/or are incomplete: Nos. 1, 5, 9, 12, 13, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, and 33.

Plaintiff’s only objection to Special Interrogatory Nos. 36-73 is that more than 35 special interrogatories were served. All objections have been waived, and this objection is overruled. Moreover, Defendant included a declaration with the special interrogatories authorizing the service of more than 35 special interrogatories. (CCP §§ 2030.030(a)(1) & (b), 2030.070, 2030.050.)

The Court GRANTS Brown & Streza motion to compel further responses to its First Amended Special Interrogatories, Set One, Nos. 1-73. Plaintiff to serve verified, further, objection-free responses within 30 days.

Brown & Streza’s request for \$4,060 in monetary sanctions, which includes 16 hours for this motion is not reasonable. The Court finds 8.0 hours to draft this motion, and 2.0 hours to review any opposition and to draft a reply at a hourly rate of \$250 per hour to be reasonable, in addition to the \$60 filing fee. (Liu Decl., ¶ 8.) Additional time to attend the hearing on the motion will not be awarded, as that time is being awarded in connection with the motion to compel responses to form interrogatories.

Based on the foregoing, the Court GRANTS a monetary sanction in the reduced amount of \$2,560 (\$250 x 10 hours + \$60) against Plaintiff, to be paid within 30 days.

Requests for Production

On September 15, 2025, Defendant served its First Amended Requests for Production, Set One, on Plaintiff by email and U.S. mail. (Liu Decl., ¶ 2.) Plaintiff did not serve responses until November 8, 2025, and did not serve a purported verification until December 15, 2026. (Liu Decl., ¶¶ 3, 6, Ex. D.) Plaintiff's responses were untimely. Therefore, all objections have been waived.

A demanding party may move for an order compelling a further response to a demand for inspection if a statement of compliance with the demand is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc. § 2031.310(a).) The motion must set forth specific facts showing good cause justifying the discovery sought by the discovery request. (Code Civ. Proc. § 2031.310(b)(1).) For a request to produce documents, “a party who seeks to compel production must show ‘good cause’ for the request . . . but where, . . . , there is no privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance.” (Glenfed Develop. Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1117.)

If the moving party demonstrates good cause, then the opposing party must justify any objections. (Kirkland v Superior Court (2002) 95 Cal. App. 4th 92, 98.)

While Brown & Streza asserts that documents relating to Plaintiff's vexatious litigant status are directly relevant to this litigation, Brown & Streza does not demonstrate good cause for requests for production related to Plaintiff's vexatious litigant status, namely Requests for Production, Nos. 33-38. Nor does Brown & Streza demonstrate good cause for seeking all documents relating to any court case or filing in which Plaintiff has participated and been self-represented in any California court from January 1, 2015, to the present (No. 39), and all documents showing sanctions imposed against Plaintiff in any litigation from January

1, 2015, to the present (No. 40). Therefore, the motion to compel is DENIED as to Requests for Production, Nos. 33-40.

The remaining requests for production of documents appear directly relevant to Plaintiff's claims in this action for constructive fraud, dependent financial abuse, legal malpractice, and breach of fiduciary duty relating to the trust and will at issue in this action. As Plaintiff has not filed an opposition, Plaintiff has not justified any objections. Additionally, Plaintiff's responses to Requests for Production, Nos. 1-32 and 41-60 are deficient.

A response to a request for production may consist of a statement that the responding party will comply, a statement that the responding party lacks the ability to comply, or an objection to the request. (CCP § 2031.210(a).) Plaintiff's responses to Requests for Production, Nos. 1-32 and 41-60 do not clearly provide that Plaintiff will comply, lacks the ability to comply, or is asserting an objection. To the extent that Plaintiff intends to comply with any request, no documents have been produced. (Liu Decl., ¶ 4; Reply Declaration of Stevie B. Baris, ¶ 9.)

Plaintiff's responses do not identify with particularity any documents being withheld, and do not clearly set forth the extent of the specific ground for the objection.

An objection that a document is "equally accessible" is not a proper objection to a request for production of documents.

Additionally, any other objections to a request for production, such as that it is overly broad, irrelevant, "unclean hands", "fraud", lacks foundation, assumes facts not in evidence, ambiguous, misleading, red herring, and compound, have been waived, and are not proper objections to a request for production of documents.

Lastly, to the extent that Plaintiff asserts attorney-client privilege or privacy objections (Nos. 41, 42, 47, 48, 49, 57), no privilege log has been provided. When a

responding party asserts claims of privilege or attorney work product protection, the responding party must provide sufficient factual information to enable the parties and the court to evaluate the merits of a claim, including, if necessary, a privilege log. (Code Civ. Proc. § 2031.240(c)(1); Riddell, Inc. v. Superior Court (2017) 14 Cal.App.5th 755, 772.)

Based on the foregoing, Brown & Streza's motion to compel further responses to First Amended Requests for Production, Set One, Nos. 1-60 is GRANTED. Plaintiff to serve further, verified, objection-free responses within 30 days subject to a privacy or privilege objection. Plaintiff to also serve a privilege log within 30 days, if applicable.

Brown & Streza's request for \$5,810 in monetary sanctions for 23 hours on this motion is not reasonable. The Court finds 8.0 hours to draft this motion, and 2.0 hours to review any opposition and to draft a reply at a hourly rate of \$250 per hour to be reasonable, in addition to the \$60 filing fee. (Liu Decl., ¶ 8.)

Based on the foregoing, the Court GRANTS a monetary sanction in the reduced amount of \$2,560 (\$250 x 10 hours + \$60) against Plaintiff, to be paid within 30 days.

Requests for Admission

Here, on September 15, 2025, Defendant served its First Amended Requests for Admission, Set One, on Plaintiff. (Declaration of Hanqiu Liu ("Liu Decl."), ¶ 2, Ex. 1.) Plaintiff did not serve any response until November 8, 2025. (Liu Decl., ¶ 4, Ex. 2.) Those responses were not verified at the time they were served and the verification dated and served on December 12, 2025, is not signed. (Liu Decl., ¶¶ 4, 5; Reply Declaration of Stevie B. Baris, ¶¶ 9, Ex. E.) Plaintiff's responses do not contain only objections and as the verification is not signed, the responses are tantamount to no response at all. (CCP § 2033.210(a), § 2033.240(a); Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636; Zorro Inv. Co. v. Great Pacific Securities Corp. (1977) 69 Cal.App.3d 907, 914.)

Defendant, Brown & Streza LLP moves for an order deeming the matters specified in Defendant's First Amended Requests for Admission, Set One, Nos. 1-65 admitted as against Plaintiff, or alternatively, compelling Plaintiff to serve further, verified responses, without objections, to Defendant's First Amended Requests for Admission, Set One, Nos. 1-65. Defendant also moves for an order awarding monetary sanctions in the amount of \$3,500 against Plaintiff. The Motion is GRANTED, as follows.

Defendant first asserts that Defendant's First Amended Requests for Admission, Set One, Nos. 1-65 should be deemed admitted as against Plaintiff as Plaintiff did not serve timely or verified responses, and that the responses served were not in substantial compliance with Code of Civil Procedure section 2033.220.

Substantial compliance means actual compliance in respect to the substance essential to every reasonable objective of the statute. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 779.) The court is to "evaluate qualitatively the proposed response to the RFAs in toto to determine whether it substantially complies with the code. It does not permit the court to segregate each individual RFA response for the purpose of finding that portions of the document are code-compliant (and will therefore be accepted), while concluding that other portions are noncompliance (and will thus be rejected)." (Id. at pp. 779-780.) The court is to review the totality of the response to the requests for admission. (Id. at p. 782.) The court cannot convert a motion to deem requests for admissions admitted into a motion to compel further responses. (Id. at pp. 782-783.)

The assertion of waived objections does not prevent substantial compliance with Section 2033.220 as required by Section 2033.280(c). (Katayama v. Continental Investment Group (2024) 105 Cal.App.5th 898, 909.) "Compliance analysis should prioritize the nature of the substantive answers in the proposed response. While waived objections should be a factor in the assessment, their presence should primarily be addressed through the amount of mandatory monetary

sanctions imposed.” (Id. at pp. 908-909 [proposed responses prefaced with general objections and containing one-word answers (“deny” or “admit”) to all but one of the requests substantially complied with Code of Civil Procedure section 2033.220].)

In addition, in reviewing Plaintiff’s untimely responses to Defendant’s First Amended Requests for Admission, the totality of the responses do not substantially comply with Code of Civil Procedure section 2033.220 as Plaintiff’s responses are not complete and straightforward as the information reasonably available to the responding party permits. The responses do not clearly admit so much of the matter is true, deny so much of the matter that is untrue, or specify if Plaintiff lacks sufficient information or knowledge.

Plaintiff provided no response to Requests for Admission, No. 7.

In addition, in response to Requests for Admission, Nos. 36-65, Plaintiff did not admit, deny, or give lack of information or knowledge as a result for a failure to admit all or part of a request, but instead, asserted the same following objection: “Objection over 35. CCP § 2033.050.” As Plaintiff failed to serve a timely response, this objection is waived.

As Plaintiff’s response is unverified and untimely, and the totality of the response is not in substantial compliance with Code of Civil Procedure section 2033.220, the Court GRANTS Brown & Streza’s motion to deem the matters in its First Amended Requests for Admission, Set One, admitted.

Because Plaintiff’s failure to serve timely, verified responses to Brown & Streza’s Requests for Admission, Set One necessitated the filing of the instant motion, a monetary sanction is mandatory. Brown & Streza’s request for \$3,400 in monetary sanctions for 14 hours on this motion is not reasonable. The Court finds 8.0 hours to draft this motion and separate statement, and 2.0 hours to review any opposition and to draft a reply at an

		hourly rate of \$250 per hour to be reasonable, in addition to a \$60 filing fee. (Liu Decl., ¶ 9.) Based on the foregoing, the Court GRANTS a monetary sanction in the reduced amount of \$2,560 (\$250 x 10 hours + \$60) against Plaintiff, to be paid within 30 days. Moving party to give notice of the court's ruling on all motions.
108	Favero v. California Friends Homes 2025-01520569	Motion for Preference – DENIED WITHOUT PREJUDICE Plaintiff, Emilio Favero, moves for an order granting Plaintiff trial preference and setting trial 120 days from the date of the hearing on this motion, citing Code of Civil Procedure section 36(a). The action has been stayed as to Defendant California Friends Homes dba Rowntree Gardens and its opposition has not been considered. The action remains as to Defendant Park Regency Care, LLC dba Park Regency Care Center. Plaintiff's reply papers were filed late. (CCP § 1005.) While a paper may not be rejected for filing on the ground that it was untimely submitted for filing, the court, in its discretion, may refuse to consider a late filed paper. (CRC, rule 3.1300(d).) If the court does so, the minutes or order must so indicate. (Ibid.) In determining whether to receive an untimely filed document, "trial courts must consider the specific contexts in which such motions arise and should employ a flexible rather than rigid or formalistic approach to decisionmaking." (Kapitanski v. Von's Grocery Co. (1983) 146 Cal.App.3d 29, 32-33.) "An attorney's neglect in untimely filing opposing papers must be evaluated in light of the reasonableness of the attorney's conduct. [Citation.]" (Id. at p. 33.) "Also pertinent are the effects of strict enforcement on the rights of the parties and the furtherance of justice. [Citations.]" (Ibid.) Despite the late service and late filing, the Court exercises its discretion to consider the reply papers.